

Kasim v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 5 August 2022 · Writ-C No. 17916 of 2022 · Writ-C No. 17916 of 2022 · **Writ disposed; petitioner relegated to a para 6.8 objection with stay of coercive recovery.**

HEADNOTE

The Allahabad High Court disposed of a consumer's writ challenging a 2021 electricity demand of Rs. 1,07,937 without examining the merits. It granted liberty to file an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, directed time-bound disposal after hearing, and stayed coercive action on the demand for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

Kasim petitioned the Allahabad High Court to quash demand notice no. 514 dated 13 August 2021 issued by the Executive Engineer, Vidyut Vitran Khand 3rd, Moradabad, for Rs. 1,07,937. On an earlier listing nobody appeared to press the petition. Counsel for the distribution licensee later stated on instructions that the petitioner could file an objection to the demand, to be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection-to-demand-under-para-6.8

HOLDING

Without expressing any opinion on merits, the Court disposed of the writ and granted the petitioner liberty to submit an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 2 within four weeks. If so submitted, the objection shall be decided in accordance with law within the next four weeks after affording a reasonable opportunity of hearing. Coercive action on the impugned demand is stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Court directed a paragraph 6.8 objection to be decided after hearing within a fixed period, and stayed coercive recovery on the demand pending that process. ¶ 4-5

assessment-6.8-alternate-remedy The writ was closed without a merits grant or refusal by relegating the consumer to the statutory objection under paragraph 6.8 of the Supply Code. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF DEMAND NOTICE NO. 514 DATED 13.8.2021 FOR RS. 1,07,937

The Court expressly declined to opine on merits and sent the consumer to a paragraph 6.8 objection. ¶ 4